



POLICE DEPARTMENT

May 19, 2025

----- x
In the Matter of the Charges and Specifications
- against -

Police Officer Anthony Lombardi
Tax Registry No. 967967
102 Detective Squad

Case No.
2024-30538

Police Officer Ryan McCrain
Tax Registry No. 966701
113 Precinct

Case No.
2024-30539

Police Officer Thomas Sinclair
Tax Registry No. 966341
113 Precinct

Case No.
2024-30540
----- x

At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Vanessa Facio-Lince
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB:

Kenneth Crouch & Casey Graetz, Esqs.
Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

For the Respondents:

John Tynan, Esq.
Worth, London & Martinez, LLP
111 John Street, Suite 640
New York, NY 10038

To:
HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

COURTESY • PROFESSIONALISM • RESPECT

Website: <http://nyc.gov/nypd>

CHARGES AND SPECIFICATIONS

Disciplinary Case No. 2024-30538

1. Police Officer Anthony Lombardi, on or about December 21, 2022, at approximately 0300 hours, while assigned to the 113 Precinct and on duty, in the vicinity of Foch Boulevard and Guy R. Brewer Boulevard, Queens County, abused his authority as a member of the New York City Police Department, in that Officer Lombardi frisked a bag belonging to J.B. [REDACTED] without sufficient legal authority.

P.G. 212-11, Page 8, Paragraph 39

INVESTIGATIVE
ENCOUNTERS

2. Police Officer Anthony Lombardi, on or about December 21, 2022, at approximately 0300 hours, while assigned to the 113 Precinct and on duty, in the vicinity of Foch Boulevard and Guy R. Brewer Boulevard, Queens County, abused his authority as a member of the New York City Police Department, in that Officer Lombardi searched a bag belonging to J.B. [REDACTED] without sufficient legal authority.

P.G. 212-11, Page 9, Paragraph 44

INVESTIGATIVE
ENCOUNTERS

3. Police Officer Anthony Lombardi, on or about December 21, 2022, at approximately 0300 hours, while assigned to the 113 Precinct and on duty, in the vicinity of Foch Boulevard and Guy R. Brewer Boulevard, Queens County, abused his authority as a member of the New York City Police Department, in that Officer Lombardi questioned J.B. [REDACTED] without sufficient legal authority.

P.G. 212-11, Page 4, Paragraph 14

INVESTIGATIVE
ENCOUNTERS

4. Police Officer Anthony Lombardi, on or about December 21, 2022, at approximately 0300 hours, while assigned to the 113 Precinct and on duty, in the vicinity of Foch Boulevard and Guy R. Brewer Boulevard, Queens County, abused his authority as a member of the New York City Police Department, in that Officer Lombardi frisked J.B. [REDACTED] without sufficient legal authority.

P.G. 212-11, Page 8, Paragraph 39

INVESTIGATIVE
ENCOUNTERS

5. Police Officer Anthony Lombardi, on or about December 21, 2022, at approximately 0300 hours, while assigned to the 113 Precinct and on duty, in the vicinity of Foch Boulevard and Guy R. Brewer Boulevard, Queens County, abused his authority as a

member of the New York City Police Department, in that Officer Lombardi searched J.B. [REDACTED] without sufficient legal authority.

P.G. 212-11, Page 8, Paragraph 43

INVESTIGATIVE
ENCOUNTERS

6. Police Officer Anthony Lombardi, on or about December 21, 2022, at approximately 0300 hours, while assigned to the 113 Precinct and on duty, in the vicinity of Foch Boulevard and Guy R. Brewer Boulevard, Queens County, abused his authority as a member of the New York City Police Department, in that Officer Lombardi failed to provide J.B. [REDACTED] with a business card without police necessity.

A.G. 304-11

COMPLIANCE WITH NYC
RIGHT TO KNOW ACT

7. Police Officer Anthony Lombardi, on or about December 21, 2022, at approximately 0300 hours, while assigned to the 113 Precinct and on duty, in the vicinity of Foch Boulevard and Guy R. Brewer Boulevard, Queens County, abused his authority as a member of the New York City Police Department, in that Officer Lombardi took law enforcement action based upon actual or perceived race.

A.G. 304-17, Page 1, Paragraph 1

DEPARTMENT POLICY
PROHIBITING RACIAL
PROFILING AND BIAS-
BASED POLICING

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

Disciplinary Case No. 2024-30539

1. Police Officer Ryan McCrain, on or about December 20, 2022, at approximately 2118 hours, while assigned to the 113 Precinct and on duty, in the vicinity of Lakeview Lane and 122nd Avenue, Queens County, abused his authority as a member of the New York City Police Department, in that Officer McCrain questioned an individual without sufficient legal authority.

P.G. 212-11, Page 4, Paragraph 14

INVESTIGATIVE
ENCOUNTERS

2. Police Officer Ryan McCrain, on or about December 20, 2022, at approximately 2118 hours, while assigned to the 113 Precinct and on duty, in the vicinity of Lakeview Lane and 122nd Avenue, Queens County, abused his authority as a member of the New York

City Police Department, in that Officer McCrain frisked an individual without sufficient legal authority.

P.G. 212-11, Page 8, Paragraph 39

INVESTIGATIVE
ENCOUNTERS

3. Police Officer Ryan McCrain, on or about December 20, 2022, at approximately 2118 hours, while assigned to the 113 Precinct and on duty, in the vicinity of Lakeview Lane and 122nd Avenue, Queens County, abused his authority as a member of the New York City Police Department, in that Officer McCrain questioned Desmond Archibald without sufficient legal authority.

P.G. 212-11, Page 4, Paragraph 14

INVESTIGATIVE
ENCOUNTERS

4. Police Officer Ryan McCrain, on or about December 20, 2022, at approximately 2118 hours, while assigned to the 113 Precinct and on duty, in the vicinity of Lakeview Lane and 122nd Avenue, Queens County, engaged in conduct prejudicial to the good order, efficiency or discipline of the New York City Police Department, in that Officer McCrain seized Desmond Archibald's property without sufficient legal authority

A.G. 304-06 Page 1, Paragraph 1

PROHIBITED CONDUCT

5. Police Officer Ryan McCrain, on or about December 20, 2022, at approximately 2118 hours, while assigned to the 113 Precinct and on duty, in the vicinity of the 113 Precinct stationhouse, Queens County, abused his authority as a member of the New York City Police Department, in that Officer McCrain searched Desmond Archibald's property without sufficient legal authority.

P.G. 212-11, Page 9, Paragraph 44

INVESTIGATIVE
ENCOUNTERS

6. Police Officer Ryan McCrain, on or about December 20, 2022, at approximately 2118 hours, while assigned to the 113 Precinct, in the vicinity of Lakeview Lane and 122nd Avenue and the 113 Precinct stationhouse, Queens County, abused his authority as a member of the New York City Police Department, in that Officer McCrain took law enforcement action based upon actual or perceived race.

A.G. 304-17, Page 1, Paragraph 1

DEPARTMENT POLICY
PROHIBITING RACIAL
PROFILING AND BIAS-
BASED POLICING

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

Disciplinary Case No. 2024-30540

1. Police Officer Thomas Sinclair, on or about December 20, 2022, at approximately 2118 hours, while assigned to the 113 Precinct and on duty, in the vicinity of Lakeview Lane and 122nd Avenue, Queens County, abused his authority as a member of the New York City Police Department, in that Officer Sinclair questioned J.B. [REDACTED] without sufficient legal authority.

P.G. 212-11, Page 4, Paragraph 14

INVESTIGATIVE
ENCOUNTERS

2. Police Officer Thomas Sinclair, on or about December 20, 2022, at approximately 2118 hours, while assigned to the 113 Precinct and on duty, in the vicinity of Lakeview Lane and 122nd Avenue, Queens County, abused his authority as a member of the New York City Police Department, in that Officer Sinclair frisked J.B. [REDACTED] without sufficient legal authority.

P.G. 212-11, Page 8, Paragraph 39

INVESTIGATIVE
ENCOUNTERS

3. Police Officer Thomas Sinclair, on or about December 20, 2022, at approximately 2118 hours, while assigned to the 113 Precinct and on duty, in the vicinity of Lakeview Lane and 122nd Avenue, Queens County, abused his authority as a member of the New York City Police Department, in that Officer Sinclair questioned R.M. [REDACTED] without sufficient legal authority.

P.G. 212-11, Page 4, Paragraph 14

INVESTIGATIVE
ENCOUNTERS

4. Police Officer Thomas Sinclair, on or about December 20, 2022, at approximately 2118 hours, while assigned to the 113 Precinct and on duty, in the vicinity of Lakeview Lane and 122nd Avenue, Queens County, abused his authority as a member of the New York City Police Department, in that Officer Sinclair frisked R.M. [REDACTED] without sufficient legal authority.

P.G. 212-11, Page 8, Paragraph 39

INVESTIGATIVE
ENCOUNTERS

5. Police Officer Thomas Sinclair, on or about December 20, 2022, at approximately 2118 hours, while assigned to the 113 Precinct and on duty, in the vicinity of 113 Precinct stationhouse, Queens County, abused his authority as a member of the New York City

Police Department, in that Officer Sinclair searched the vehicle in which Desmond Archibald was an occupant without sufficient legal authority.

P.G. 212-11, Page 9, Paragraph 44

INVESTIGATIVE
ENCOUNTERS

6. Police Officer Thomas Sinclair, on or about December 20, 2022, at approximately 2118 hours, while assigned to the 113 Precinct and on duty, in the vicinity of Lakeview Lane and 122nd Avenue, Queens County, engaged in conduct prejudicial to the good order, efficiency or discipline of the New York City Police Department, in that Officer Sinclair seized Desmond Archibald's property without sufficient legal authority.

A.G. 304-06 Page 1, Paragraph 1

PROHIBITED CONDUCT

7. Police Officer Thomas Sinclair, on or about December 20, 2022, at approximately 2118 hours, while assigned to the 113 Precinct and on duty, in the vicinity of the Lakeview Lane and 122nd Avenue, Queens County, abused his authority as a member of the New York City Police Department, in that Officer Sinclair took law enforcement action based upon actual or perceived race.

A.G. 304-17, Page 1, Paragraph 1

DEPARTMENT POLICY
PROHIBITING RACIAL
PROFILING AND BIAS-
BASED POLICING

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

REPORT AND RECOMMENDATION

The above-named members of the Department appeared before me on December 18 and 19, 2024. Respondents, through their counsel, entered pleas of Not Guilty to the subject charges. The CCRB called Dr. Alix Winter and the complainant, Desmond Archibald, as witnesses, and introduced evidence of the Respondents' Body-Worn Camera ("BWC") footage. Each Respondent testified on their own behalf. Having evaluated all of the evidence in this matter, I find as follows:

Respondent Lombardi:

Specification 1 (Frisk of Bag belonging to J.B. [REDACTED]) Not Guilty
Specification 2 (Search of Bag belonging to J.B. [REDACTED]) Guilty
Specification 3 (Questioning J.B. [REDACTED]) Guilty
Specification 4 (Frisk of J.B.'s [REDACTED] person): Guilty
Specification 5 (Search of J.B.'s [REDACTED] person): Guilty
Specification 6 (Failure to Provide Business Card): Guilty
Specification 7 (Taking Law Enforcement Action Based on Race): Not Guilty
Recommended penalty for Respondent Lombardi: 6 vacation days

Respondent McCrain:

Specification 1 (Questioning Unidentified Individual): Guilty
Specification 2 (Frisk of Unidentified Individual): Guilty
Specification 3 (Questioning Mr. Archibald): Guilty
Specification 4 (Seizure of Mr. Archibald's vehicle): Guilty
Specification 5 (Search of Mr. Archibald's vehicle): Guilty
Specification 6 (Taking Law Enforcement Action Based on Race): Not Guilty
Recommended penalty for Respondent McCrain: 12 vacation days

Respondent Sinclair:

Specification 1 (Questioning J.B. [REDACTED]) Guilty
Specification 2 (Frisk of J.B. [REDACTED]) Guilty
Specification 3 (Questioning R.M. [REDACTED]): Guilty
Specification 4 (Frisk of R.M. [REDACTED]): Guilty
Specification 5 (Search of Mr. Archibald's vehicle): Guilty
Specification 6 (Seizure of Mr. Archibald's vehicle): Guilty
Specification 7 (Taking Law Enforcement Action Based on Race): Not Guilty
Recommended penalty for Respondent Sinclair: 12 vacation days

ANALYSIS

The following facts are undisputed. On December 20, 2022, Respondents Ryan McCrain and Thomas Sinclair were assigned to the Neighborhood Safety Team (hereinafter "NST") of the 113 Precinct. At approximately 2100 hours, in proximity of the intersection of Lakeview Lane and 122nd Avenue, Respondents pulled over a BMW driven by Desmond Archibald to address an air freshener hanging from his rearview mirror (a VTL violation). It should be noted that all

parties agreed and stipulated at trial that there was sufficient legal authority to stop Mr.

Archibald's car on the date in question. J.B. [REDACTED], R.M. [REDACTED], and an unidentified male were passengers in Mr. Archibald's vehicle. All four were young, Black men.

Respondent McCrain asked Mr. Archibald for his driver's license and registration. Mr. Archibald provided the car registration and his pedigree information. Respondent McCrain then conducted a license check on his Department-issued phone and discovered that Mr. Archibald's license was suspended. Respondents ordered Mr. Archibald and his passengers out of the car. Respondent McCrain asked the unidentified male if he had any weapons on him, requested consent to frisk, and frisked him. Respondent Sinclair also frisked J.B. [REDACTED] and R.M. [REDACTED] after asking for consent to do so. Respondent McCrain asked Mr. Archibald if there was anything illegal in the car and requested consent to search the vehicle. Mr. Archibald refused to give consent, but informed the officer that there was marijuana in the car. Ultimately, Mr. Archibald was arrested for driving with a suspended license.

Mr. Archibald's vehicle was seized and brought to the 113 Precinct, where Respondents McCrain and Sinclair conducted what they characterized as an inventory search of the vehicle. According to Respondents, after conducting a search of Mr. Archibald's car, they were informed by their supervisor that the arrest would be reassigned. They had no further contact with Mr. Archibald and resumed patrol. Respondents McCrain and Sinclair did not prepare a Vehicle Report, Stop Report, or a Consent Search Report for this incident.

Six hours after the initial stop, at approximately 3:00 a.m. on December 21, 2022, Mr. Archibald was released from police custody after being issued a Desk Appearance Ticket. Ms. S.W. [REDACTED] picked up Mr. Archibald at the 113 Precinct and was driving in his vehicle. While at the intersection of Foch Boulevard and Guy R. Brewer Boulevard in Queens, police

officers from the 113 Precinct stopped the car again for the air freshener that was still hanging from the rearview mirror. Respondents McCrain and Sinclair were not involved in this second stop. Moreover, the officers from the 113 Precinct who initiated this stop were not brought up on charges by CCRB. Additional officers, including Respondent Anthony Lombardi, arrived on scene later to provide back-up. At the time of the stop, there were three passengers in the vehicle. Ms. S.W. [REDACTED] was the driver, Mr. Archibald was seated in the front passenger seat and J.B. [REDACTED] was seated in the rear.

During the car stop, Respondent Lombardi asked J.B. [REDACTED] to exit the vehicle and proceeded to frisk and search a bag that he held on his wrist. Respondent Lombardi then questioned, frisked, and searched J.B. [REDACTED]. No contraband was recovered from the bag or on J.B.'s [REDACTED] person. Respondent Lombardi did not provide a business card to J.B. [REDACTED] at the conclusion of the encounter. The stop concluded after the officers received information from Mr. Archibald about the previous stop.

1. December 20, 2022 Stop by Respondents McCrain and Sinclair

Mr. Archibald, the complainant, testified that on the evening of December 20, 2022, he was driving his father's vehicle, in the company of three friends, on his way to deliver food for DoorDash. He described his father's car as a blue BMW with tinted windows that he believed to be legal. Mr. Archibald testified that he had a "Little Tree" air freshener hanging from his rearview mirror. He also acknowledged that he was driving with a suspended license. Mr. Archibald reasoned that he had to drive with a suspended license because making DoorDash deliveries was the only way he could supplement his income and afford to pay DMV the money required to remove the suspension on his license. (Tr. 155-58)

As Mr. Archibald approached 122nd Avenue and Lakeview Lane in Queens County, his car was stopped by police. Two officers exited their RMP and approached his vehicle in a “regular manner” (one officer on each side of his vehicle) and requested his license and registration. According to Mr. Archibald, he complied and provided the documentation. The officers then asked Mr. Archibald to exit the vehicle. Mr. Archibald recalled that upon exiting, the officers proceeded to “search” his person. He described the search as being “patt[ed] down...anywhere that [he] could have anything.” (Tr. 159-61)

According to Mr. Archibald, the officers then ordered the remaining occupants out of the vehicle and patted them down in the same manner as they had when they “searched” him. Mr. Archibald recollected that the officers requested to search his vehicle approximately “two to three times,” but he denied each request. After the officers called “somebody” on their radios, additional officers appeared on scene. Mr. Archibald was then placed in handcuffs and transported to the precinct in an RMP. (Tr. 161-62)

On the way to the precinct, Mr. Archibald observed his father’s vehicle being towed. He testified that two of his passengers had a license and could have taken his car. After being processed at the 113 Precinct, he was issued a Desk Appearance Ticket and released “around 12:00 to 1:00” the next morning (December 21, 2022). (Tr. 162-64)

Mr. Archibald acknowledged that the officers did not use profane or racially charged language nor did they raise their voices to him during the encounter. On cross-examination, he further conceded that there was “nothing about these officers” or their comportment that made him believe he was being racially profiled. (Tr. 181-82, 187)

Respondent McCrain testified that on the evening of December 20, 2022, he was on patrol with Respondent Sinclair in an unmarked RMP. Respondent McCrain testified that he

observed a vehicle with an air freshener hanging from the rearview mirror, a VTL violation because it obstructs the driver's view. According to Respondent McCrain, he could not see the occupants of the vehicle clearly. He could only discern the silhouettes of four heads inside. Respondent Sinclair and his partner proceeded to initiate a traffic stop. (Tr. 212-14)

Respondent McCrain requested the driver's license and registration, but Mr. Archibald could only produce the vehicle's registration. Using the pedigree information provided to him by Mr. Archibald, Respondent McCrain conducted a "license check" on his Department-issued phone and discovered that his license had been suspended. Respondent McCrain explained that in this scenario officers have discretion to either arrest the operator or release them after issuing a verbal warning. Respondent McCrain could not recall why they decided to arrest in this instance, but maintained that race did not play a role in his decision making. (Tr. 216-19)

Respondent McCrain then ordered Mr. Archibald and a passenger seated in the rear to step out of the vehicle. Respondent stated that he did not initially frisk Mr. Archibald because "there was no need to," but then frisked the passenger because he received "consent" to do so. According to Respondent McCrain's testimony, he did not have any reason to believe that said passenger was armed, but asked if he had any weapons because "it's an officer safety thing." Respondent McCrain conceded that he did not inform that passenger that he could withhold his consent. The frisk of the passenger yielded no results. (Tr. 219, 230, 240-41)

Respondent McCrain asked Mr. Archibald for consent to search the vehicle. Mr. Archibald asserted that there was no reason for him to conduct a search. Respondent McCrain responded that it was "up to [him]" and did not search the vehicle on scene. Respondent McCrain did, however, ask Mr. Archibald if there was anything in the vehicle. Mr. Archibald disclosed that there was "a little weed." (CCRB Ex. 2 at 6:28-6:50) Respondent McCrain

recalled smelling marijuana but could not remember whether he observed any lit marijuana in the vehicle in plain view. At trial, Respondent McCrain testified that he observed a “little bit of smoke emanating from the vehicle.” However, when questioned about a previous interview with CCRB where he stated that he did not see any smoke, Respondent McCrain stated he did not recall that interview or having given that answer. (Tr. 220, 226-27)

Respondent McCrain testified that although they had already made the decision to arrest Mr. Archibald, they waited for a supervisor to arrive on scene before placing him in handcuffs. Respondent McCrain stated that he then searched Mr. Archibald “incident to the lawful arrest.” On cross-examination, Respondent McCrain acknowledged that one of the passengers offered to take temporary custody of Mr. Archibald’s vehicle, but Respondent McCrain told him the car had to go back to the precinct and could not be released on scene. Mr. Archibald and his vehicle were then transported to the 113 Precinct for processing. Respondent McCrain maintained that he did not use any threatening, profane, or racially charged language throughout this encounter. (Tr. 221-22, 231-33)

At the 113 Precinct, Respondent McCrain conducted an inventory search of the vehicle, but he did not fill out a Property Clerk Invoice or an itemized list of valuables recovered from the car. He reasoned that these documents were not created because his supervisor reassigned the arrest. Respondent McCrain also acknowledged that he failed to complete a Vehicle Report and a Consent Search report in regard to his interaction with the other passengers—two reports that are required to be documented regardless of reassignment. (Tr. 233-36, 240)

Respondent Sinclair provided a substantially similar version of the encounter. He recalled that as he approached the passenger side of Mr. Archibald’s vehicle, he “observed smoke emanating from the rear window,” which he recognized as “marijuana smoke” from the odor.

Before asking the individuals for identification, Respondent Sinclair informed them that “they can’t smoke in the car.” (Tr. 245-47, CCRB Ex. 3 at 01:33-01:36) A short time later, all the occupants were asked to exit and stand at the back of the vehicle, which Officer Sinclair reasoned was “for officer safety purposes.” (Tr. 248)

According to Respondent Sinclair, all occupants were frisked prior to him learning that Mr. Archibald had a suspended license. Respondent Sinclair testified that he did not complete the paperwork to document the frisks he performed because it “must have slipped [my] mind” after the arrest was reassigned. Respondent Sinclair also testified that he and his partner searched the vehicle at the precinct but admitted that he did not complete the required paperwork, although he was aware that he was obligated to do so. (Tr. 247-49, 253-55)

When Respondent Sinclair was asked if there was anything about this vehicle’s occupants’ physical appearance that caused the stop, Officer Sinclair responded, “No.” He also asserted that he has never used race as the “sole” purpose for making a car stop or for taking law enforcement action (Tr. 250, 257-58)

a. Specifications 1 & 2: Questioning & Frisking of Unidentified Individual by Respondent McCrain

Respondent McCrain is charged with questioning and frisking an unidentified individual/occupant of the vehicle without sufficient legal authority. Patrol Guide 212-11 describes the types of encounters a uniformed member of the service may initiate with a member of the public during the course of his or her official duties, the level of knowledge required for each type of encounter, the scope of a police officer’s authority for each type of encounter, the measures that are permissible to protect uniformed members of the service from injury, and the procedures to be followed by a member of the service during these encounters. These rules,

initially established by *People v. De Bour*, 40 N.Y. 2d 210 (1976), apply when the individuals being questioned, frisked, and searched are pedestrians or occupants of a vehicle.

The *De Bour* framework, which is incorporated by reference in Patrol Guide 212-11, sets out four levels of police-citizen encounters, outlining the escalating measures of suspicion necessary to justify each. During a Level 1 encounter or “request for information,” a police officer may approach an individual if he or she has an “objective credible reason” to approach the civilian. P.G. 212-11 specifically states that this type of encounter does not require any suspicion of criminal activity, emphasizing:

The objective is to gather information and not to focus on the person as a potential suspect. A police officer may seek information related to the reason(s) the person was approached, such as the person’s name, address and destination, if those questions are related to the objective credible reason for the approach. The officer may not ask accusatory questions.

However, “[o]nce the officer asks more pointed questions that would lead the person approached reasonably to believe that he or she is suspected of some wrongdoing . . . the officer is no longer merely seeking information.” (*Id.*) This “common-law right of inquiry, a wholly separate level of contact, is ‘activated by a founded suspicion that criminal activity is afoot.’” *People v. Hollman*, 79 N.Y.2d 181 (1992), quoting *De Bour*, 40 N.Y.2d at 223. According to P.G. 212-11, “upon a founded suspicion of criminality, the officer may approach a person to ask accusatory questions and may seek consent to search; however, consent must be voluntarily given ... The officer may engage protective measures, when he or she has a reasonable concern for his or her safety.” However, “a police officer's question as to whether an individual has a weapon is a common-law inquiry requiring founded suspicion of criminality.” See *People v. Garcia*, 20 N.Y.3d 317, 322 (2012), citing *People v. Ward*, 22 A.D.3d 368 (1st Dept. 2005).

Respondent McCrain's BWC recording captured him asking the unidentified civilian in the back passenger seat to exit the car. Immediately thereafter, Respondent McCrain asked, "Do you have any weapons on you?" The unidentified civilian shook his head and answered, "No." Respondent McCrain followed up by asking, "Do you mind if I just pat you down?" The unidentified civilian replied, "Yeah, yeah, yeah," and raised his arms. Respondent McCrain did not inform the unidentified civilian that he could refuse consent. (See CCRB Ex. 2 at 5:30-6:22)

During his testimony, Respondent McCrain did not articulate an objective, credible reason to engage with the unidentified individual in the back seat of the car, let alone founded suspicion of criminality. In fact, when asked why he took police action with regard to this individual, Respondent McCrain testified that he did so for "officer safety," without further explanation. (Tr. 230, 239) While an officer may engage in protective measures in a Level 2 encounter when he or she has a reasonable concern for his or her safety, Respondent McCrain did not articulate any such factors that would lead him to be concerned for his safety.

Respondent McCrain's questioning was not aimed at gathering information; it was an unambiguous attempt to ascertain whether this individual was in possession of a weapon. Since Respondent McCrain admitted that he had no reason to believe that this individual was armed or posed a danger, he did not have the requisite level of suspicion to elevate this to a Level 2 encounter. In the absence of articulable founded suspicion, Respondent McCrain should not have even asked the individual for consent to frisk, let alone conduct the frisk.

Accordingly, this Tribunal finds Respondent McCrain guilty of Specifications 1 and 2.

b. Specification 3: Questioning of Desmond Archibald by Respondent McCrain

Respondent McCrain is charged with questioning Mr. Archibald without sufficient legal authority. Respondent McCrain's BWC captured this interaction. After removing all the

occupants from the vehicle, Respondent McCrain asked Mr. Archibald a series of questions including, “Do you guys have anything illegal in the car?” Mr. Archibald shook his head, and Respondent McCrain asked, “Do you mind if we search it?” Mr. Archibald shook his head again and replied, “There’s nothing in the car, honestly, no.” Respondent McCrain repeated, “You would be okay with us searching it?” Mr. Archibald said, “There would be no reason to.” Respondent McCrain replied, “It’s up to you.” Mr. Archibald reiterated, “I don’t see no reason to. There’s nothing in the car. . . It’s just the weed. A little bit of weed.” (CCRB Ex. 2 at 6:25-6:50)

During the hearing, Respondent McCrain testified that after he ran a license check, he determined that Mr. Archibald’s license was suspended.¹ Respondent McCrain proceeded to order Mr. Archibald and the other passengers out of the car and began questioning Mr. Archibald about the contents of his car. Respondent McCrain pursued an investigation consistent with his NST role of interdicting serious crime, but one that was unsupported by the underlying basis for the stop (an air freshener hanging from a rearview mirror) and the suspended license.

As discussed in further detail below, Patrol Guide 209-26 delineates the procedures to be undertaken when a uniformed member of the service stops a vehicle and discovers that the operator is driving with a suspended driver’s license. These procedures do not require officers to invoice the contents of the vehicle. Therefore, Respondent McCrain’s questions regarding the

¹ VTL § 511 defines driving with a suspended license as “aggravated unlicensed operation of a motor vehicle in the third degree” and states: “(a) A person is guilty of the offense of aggravated unlicensed operation of a motor vehicle in the third degree when such person operates a motor vehicle upon a public highway while knowing or having reason to know that such person’s license or privilege of operating such motor vehicle in this state or privilege of obtaining a license to operate such motor vehicle issued by the commissioner is suspended, revoked or otherwise withdrawn by the commissioner. (b) Aggravated unlicensed operation of a motor vehicle in the third degree is a misdemeanor.”

contents of Mr. Archibald's vehicle and requesting consent to search it, exceeded the reasonable bounds of this investigation. Accordingly, I find Respondent McCrain guilty of the misconduct set forth in Specification 3.

c. Specifications 1-4: Questioning & Frisking of J.B. [REDACTED] and R.M. [REDACTED] by Respondent Sinclair

Respondent Sinclair is accused of questioning and frisking J.B. [REDACTED] and R.M. [REDACTED] without sufficient legal authority. This Tribunal finds that CCRB has met its burden of showing by a preponderance of the credible evidence that Respondent Sinclair did not have reasonable suspicion that either of these individuals were armed or otherwise engaged in criminal activity.

Respondent Sinclair's BWC captures him questioning and frisking J.B. [REDACTED] and R.M. [REDACTED] after asking them to exit the car. Respondent Sinclair asked J.B. [REDACTED] if he had "anything on [him]." J.B. [REDACTED] shook his head. Respondent Sinclair then asked, "Cool if I check?" J.B. [REDACTED] lifted his arms and Respondent Sinclair patted down his pockets. After asking R.M. [REDACTED] to step out of the car, Respondent Sinclair asked, "You have nothing on you, right?" R.M. [REDACTED] replied, "No, sir," and raised his arms. Respondent Sinclair repeated, "Mind if I check?" and squeezed R.M.'s [REDACTED] pants and jacket pockets. (CCRB Ex. 3 at 5:40-6:22)

As mentioned in the previous section, Respondent Sinclair also did not articulate suspicion of criminality for any of the involved individuals. The only evidence of unlawful activity that Respondent Sinclair testified to was: an air freshener hanging from the rearview mirror (a VTL violation) and the odor of marijuana smoke emanating from the vehicle as he was talking to the occupants, which according to him, was "no big deal." (See CCRB Ex. 3 at 01:33-01:36) This Tribunal therefore finds Respondent Sinclair guilty of the misconduct charged in Specifications 1 through 4.

d. Specifications 4 & 5: Seizure and Search of Vehicle by Respondent McCrain

Specifications 5 & 6: Seizure and Search of Vehicle by Respondent Sinclair

Respondents McCrain and Sinclair are charged with seizing and searching Mr. Archibald's car in violation of the law. After Respondents made the decision to arrest Mr. Archibald for driving with a suspended license, his vehicle was taken to the precinct for what was described by Respondents as an "inventory search." Respondent McCrain testified that he could not "release the car on scene" so he brought it back to the precinct. (Tr. 232)

Patrol Guide 209-26 delineates the procedures to be undertaken when a uniformed member of the service stops a vehicle and discovers that the operator is driving with a suspended/revoked driver's license. Paragraph 5 specifically directs the MOS to "have violator's vehicle parked in legal parking area until registered owner can arrange to have vehicle removed from scene by licensed operator." There is no requirement, pursuant to this provision, that a car be seized or searched simply because the operator is driving with a suspended license. Similarly, Patrol Guide 208-03, governing the general processing of arrests, instructs the desk officer to "[h]ave vehicle or other conveyance not required as evidence safeguarded, if appropriate." Again, this guidance does not require that the vehicle be brought to the precinct or searched.

CCRB's Exhibit 2 shows that after Mr. Archibald was placed under arrest, J.B. [REDACTED] asked Respondents Sinclair and McCrain, "If one of us got a valid license, we can take the car, right?" Respondent McCrain replied, "Unfortunately not. It's gotta come back with us." Respondent Sinclair added, "It's part of his possessions." (CCRB Ex. 2 at 14:48-15:00). Before placing Mr. Archibald in a police car, Respondent McCrain told J.B. [REDACTED] R.M. [REDACTED], and the unidentified individual, "You guys are good to go. Unfortunately, you gotta walk." R.M. [REDACTED] asked, "We can't get nothing out of the car?" Respondent McCrain replied, "No." (Id. at 16:09-

16:22) Furthermore, according to the testimony adduced at trial, two of Mr. Archibald's friends had driver's licenses and could have driven the car from the scene, but Respondent McCrain maintained that he could not release the car on scene after Mr. Archibald was arrested for driving with a suspended license. (Tr. 15, 84)

Respondent McCrain's statement that he could not release Mr. Archibald's car on scene is not supported by the Patrol Guide. In fact, it is contrary to the directive given to officers in P.G. 209-26. The only other legitimate purpose of seizing the car, therefore, would be to safeguard the vehicle. Here, however, where two of Mr. Archibald's friends had driver's licenses and could have taken the car from the scene, seizing the vehicle would be unnecessary.

Since the seizure of Mr. Archibald's vehicle was not justified, it follows that the subsequent "inventory search" conducted by Respondents McCrain and Sinclair at the stationhouse also exceeded their lawful authority.

This Tribunal therefore finds Respondent McCrain guilty of Specifications 4 and 5 and Respondent Sinclair of Specifications 5 and 6.

2. December 21, 2022 Encounter Involving Respondent Lombardi

Respondent Lombardi is charged with abusing his authority as a member of the New York City Police Department, in that he frisked and searched a bag belonging to J.B. [REDACTED] without sufficient legal authority. Additionally, Respondent Lombardi is charged with questioning, frisking and searching J.B. [REDACTED] without legal justification and failing to provide him with a business card at the conclusion of their interaction. The following facts are undisputed.

Following his release from the precinct, Mr. Archibald contacted S.W. [REDACTED] to pick him up. She arrived at the precinct to drive Mr. Archibald to his home in his car. They

drove to J.B.'s house to return property that he had left in the BMW earlier that evening.
(Tr. 163-64)

A different set of officers from the 113 Precinct stopped Mr. Archibald's car while [REDACTED] was driving. At the time of this second stop, J.B. [REDACTED] was seated in the back seat. The officers asked S.W. [REDACTED] for her license. Mr. Archibald informed the officers that he had just been released from the 113 Precinct. The officers informed the occupants that the air freshener, which was still hanging from the rearview mirror, was the reason for the vehicle stop. Mr. Archibald heard one of the officers say "bag" and another officer proceeded to instruct J.B. [REDACTED] to exit the vehicle. Mr. Archibald recalled seeing an officer search J.B.'s [REDACTED] bag and "once they realized he [didn't] have anything, they [told] him to get back in the vehicle." (Tr. 165-67)

Mr. Archibald posited that the stop ended after he showed the officers the paperwork to support his assertion that he had just been ticketed and released from the precinct. He stated that he felt "harassed" during these police encounters because he had not done anything to draw attention to himself and yet he was stopped by law enforcement on two separate occasions within the span of six hours. Mr. Archibald testified that he does not get pulled over "that often" and thus, the entire ordeal was "ridiculous" in his eyes. (Tr. 167-68, 203)

Respondent Lombardi testified that, at approximately 3:00 am on December 21, he and his partners were called to a car stop, which other officers had already initiated. As he approached the car that was stopped, Respondent Lombardi observed, "a slight shift in the shoulder. Like very slight movement from the rear back passenger." (Tr. 264) Respondent Lombardi also heard an officer, who was already standing on the other side of the car, state the word "bag" to him. Respondent Lombardi understood this to mean that he saw something with a bag in the car. Respondent Lombardi further elaborated:

Typically, when we are -- as a team, when we are communicating, we typically use one word phrases just to quickly talk and not to -- not to make the person aware of what we are doing. So when he said bag to me, in our previous car stops, that means to me he saw something with a bag, he wants me to check it out. (Tr. 266)

Respondent Lombardi proceeded to ask J.B. [REDACTED] to step out of the car. He complied as he held the bag from his wrist. Respondent Lombardi questioned him about the contents of the bag, and was informed that it contained "a charger and some weed." Respondent Lombardi, however, recalled observing something heavy inside the bag, with a rectangular shape, which he believed to be a firearm. This belief caused him to immediately frisk and search the bag without first asking J.B.'s [REDACTED] consent to do so. After searching the bag, Respondent Lombardi confirmed the object was a portable charger. (Tr. 267, 279-81; CCRB Ex. 1 at 3:52-4:05)

Respondent Lombardi then told J.B. [REDACTED] "come with us" and they walked a few feet to the back of the RMP. He recounted that J.B. [REDACTED] asked to put his hands in his pocket because it was cold; Respondent Lombardi testified he had "no problem with that" but asked J.B. [REDACTED] if he could "check him." According to Respondent Lombardi, in response to that question, J.B. [REDACTED] made a motion with hands out, which led him to believe that J.B. [REDACTED] was consenting to the frisk. (Tr. 267) Respondent Lombardi also testified that the front of J.B.'s [REDACTED] jacket was "protruding out," indicating to him that there might be "an object" in his pocket. He proceeded to frisk J.B.'s [REDACTED] jacket and put his hands in both of its pockets. Respondent Lombardi did not recover anything from the search and allowed J.B. [REDACTED] to put his hands in his pockets. (Tr. 282-84; see CCRB Ex. 1 at 4:10-4:23)

On cross-examination, Respondent Lombardi admitted that when he first arrived at the scene, he did not know the basis for the stop. Respondent Lombardi also acknowledged that he did not suspect J.B. [REDACTED] of committing any crimes or other violations, other than not wearing a seatbelt. Nonetheless, Respondent Lombardi requested J.B.'s [REDACTED] identification and when he

was unable to produce one, he provided Respondent Lombardi with his pedigree information so that Respondent Lombardi could “run a search for him.” (Tr. 271, 273-74)

Respondent Lombardi confirmed that he did not prepare a memo book entry or any other written documentation about the frisk of J.B. or the search of his bag. Moreover, Respondent Lombardi admitted that he did not provide J.B. with a business card at the conclusion of the encounter because he forgot. (Tr. 262, 268, 284-85)

a. Specifications 1 & 2: Frisking and Searching of Bag

Respondent Lombardi is charged with frisking and searching J.B.'s bag without sufficient legal authority. Patrol Guide 212-11 states:

An officer may not frisk a person's bag or other item of personal property unless the officer has reasonable suspicion to believe that the person is armed and dangerous and that the bag or item of personal property could contain a weapon and is within the person's reach. If the bag/item is soft, the officer should run her/his hands down the outside of the bag/item and open it only if she/he feels the contours of what she/he believes is a weapon.

The fact that a fellow officer, who was in closer proximity to the bag in question, alerted Respondent Lombardi to it, coupled with his independent observation of the outline of a heavy, rectangular object in the bag, provided sufficient reasonable suspicion for him to frisk J.B.'s bag for the purpose of ensuring the officers' safety. Accordingly, this Tribunal finds Respondent Lombardi not guilty of Specification 1.

Respondent Lombardi's testified that “frisking” the bag did not dispel his belief that the object was a firearm. He claimed that based on the shape and weight of the item, he believed it to be a firearm despite the fact that it was not “L-shaped.” He did not, however, articulate any other description or reasonable basis to support this belief. Respondent Lombardi proceeded to look inside the bag and ascertained that it contained a portable charger, as J.B. had indicated. (Tr. 280-81)

Patrol Guide 212-11 defines “search after frisk,” as “a search that occurs when the officer places her/his hands inside a pocket or other interior portions of a person’s clothing or personal property to remove an object that the member felt during a frisk and reasonably suspects is a weapon or dangerous instrument.” After viewing the BWC footage, it appears that the bag that J.B. [REDACTED] was carrying was made of a soft, cloth-like, pliable material. Therefore, Respondent Lombardi should have been able to determine the contents of the bag by running his hands down the outside of the bag. Moreover, it was also apparent from the BWC footage that Respondent Lombardi frisked and searched J.B.’s [REDACTED] bag almost simultaneously. This signifies to the Tribunal that Respondent Lombardi acted hastily in searching inside the bag without first confirming his suspicion through the frisk of the outside of the bag as required by the Patrol Guide. Accordingly, this Tribunal finds Respondent Lombardi guilty of the misconduct set forth in Specification 2.

b. Specifications 3, 4, & 5: Questioning, Frisking & Searching of J.B. [REDACTED]

After searching J.B.’s [REDACTED] bag, Respondent Lombardi asked him to stand at the back of the vehicle. As he stood outdoors, J.B. [REDACTED] requested permission to put his hands in his pockets because it was cold. (CCRB Ex. 1 at 4:04-4:14) Respondent Lombardi asked if J.B. [REDACTED] “minded” if he checked his pockets first. He interpreted J.B.’s [REDACTED] outstretched hands as consent. Respondent Lombardi did not tell J.B. [REDACTED] that he was not required to give his consent.

After confirming that J.B. [REDACTED] did not have a weapon in his bag, Respondent Lombardi’s interaction with J.B. [REDACTED] should have ceased. According to Respondent Lombardi’s own testimony, he did not suspect J.B. [REDACTED] of anything more than a possible seatbelt violation. Moreover, Respondent Lombardi’s BWC does not show that J.B. [REDACTED] made any motions that could be interpreted as “furtive,” and there was no discernable bulge on J.B.’s [REDACTED] jacket. It is

also worth noting that Respondent Lombardi cannot be heard asking J.B. [REDACTED] for consent to search on his BWC footage. Instead, Respondent Lombardi asks, “you got nothing in your pockets, right? No knives or anything like that?” as he simultaneously frisks and searches J.B.’s [REDACTED] jacket. (CCRB Ex. 1 at 4:14-4:20)

Without additional information or any further articulable observations, Respondent Lombardi’s blanket assertion that J.B. [REDACTED] could possess a weapon on his person was insufficient to justify a further intrusion. Thus, Respondent Lombardi’s questioning, frisk, and search of J.B. [REDACTED] were legally unjustifiable. Accordingly, this Tribunal finds Respondent Lombardi guilty of the misconduct set forth in Specifications 3, 4 and 5.

c. *Specification 6: Failing to Provide Business Card*

Administrative Guide 304-11 prescribes that, in accordance with the New York City Right to Know Act, a business card is to be offered to members of the public upon conclusion of certain law enforcement activities except in cases where a summons is issued or an arrest is made. A.G. 304-11 goes on to define these law enforcement activities as:

- a) Noncustodial questioning of individuals suspected of criminal activity (Level 2 Encounter)
- b) Stop where an officer has an individualized, reasonable suspicion that the person stopped has committed, is committing, or is about to commit a crime and where a reasonable person would not feel free to end the encounter (Level 3 Encounter)
- c) Frisk (Level 3 Encounter)
- d) Search of persons or property, including vehicles.

It is undisputed that Respondent Lombardi was required to offer a business card to J.B. [REDACTED] but did not. Accordingly, I find Respondent Lombardi guilty of the misconduct set forth in Specification 6.

3. Taking Law Enforcement Action Based Upon Actual or Perceived Race

All three Respondents are charged with abusing their authority as a member of the Department by taking law enforcement action based upon actual or perceived race. Administrative Guide 304-17: Department Policy Prohibiting Racial Profiling and Bias-Based Policing prohibits a “decision to initiate enforcement action against a person [that] is motivated even in part by a person’s actual or perceived race, color, ethnicity or national origin, . . . unless the officer’s decision is based on a specific and reliable suspect description that includes not just race, age, and gender, but other identifying characteristics or information.” This prohibition on racially motivated police-initiated enforcement action applies not only to vehicle stops, but to any police-initiated enforcement action, “including, but not limited to arrests, Level 3 Terry stops, frisks, searches, [and] summonses.” *Id.*

It is well-established law that race does not have to be the “sole, primary, or predominant motivation” to prove that a law enforcement action constitutes racially biased policing. *See Arlington Heights v. Metro. Housing Dev. Corp.*, 429 U.S. 252, 265 (1977); *U.S. v. Yonkers*, 96 F.3d 600, 611-12 (2d Cir. 1996); *Floyd v. City of New York*, 959 F.Supp.2d 540, 571 (S.D.N.Y. 2013) (applying the Arlington Heights/Yonkers motivating factor standard to allegations of discriminatory policing). Moreover, a law enforcement official’s actions “need not be motivated by ill will, enmity, or hostility” to be biased. The determinative factor is whether the officer intentionally treats a civilian differently because of one or more of their protected demographic traits (e.g., race, religion, etc.). *See Floyd*, 959 F.Supp.2d at 662, quoting *Ferrill v. Parker Grp.*, 168 F.3d 468, 473 (11th Cir. 1999); *Hassan v. City of N.Y.*, 804 F.3d 277, 297-98 (3d Cir. 2015).

At the outset, the Tribunal must underscore that there is no direct evidence of biased-based policing or racial profiling in this case. Nevertheless, racially discriminatory intent may be

established through circumstantial evidence. The United States Supreme Court has explained that allegations of discrimination “demand a sensitive inquiry into such circumstantial and direct evidence of intent as may be available.” *Arlington Heights*, 429 U.S. at 266. Such “circumstantial evidence of invidious intent may include proof of disproportionate impact,” and whether the impact of the challenged official action “bears more heavily on one race than another.” *Washington v. Davis*, 426 U.S. 229, 242 (1976); see *Batson v. Kentucky*, 476 U.S. 79, 93 (1984).

In cases where there is no direct evidence of bias, the fact-finder must look to the “totality of the relevant facts.” See *LeBlanc-Sternberg v. Fletcher*, 67 F.3d 412, 425 (2d Cir. 1995). Examples of circumstantial evidence to consider include, but are not limited to: (i) the sequence of events leading up to the law enforcement activities at issue; (ii) the officers’ violation of law and/or departmental policies and procedures during the incident in question; (iii) the falsity of the officers’ non-discriminatory explanations for their actions; (iv) the officers’ departure from their own and/or their fellow officers’ customary practices during the incident in question; and (v) data showing a pattern of racial disparities in the officers’ enforcement activity over time.

The Tribunal considered all circumstantial evidence set forth in the record to determine whether CCRB had proven that Respondents’ law enforcement actions were racially biased. After careful analysis, this Tribunal finds that there is insufficient evidence to conclude that Respondents took law enforcement action based upon Complainant’s actual or perceived race. Therefore, Respondent McCrain is found to be not guilty of Specification 6; Respondent Sinclair is found to be not guilty of Specification 7; and Respondent Lombardi is found to be not guilty of Specification 7.

a. Respondents McCrain and Sinclair

As set forth in detail above, this Tribunal has already found that during this encounter Respondents McCrain and Sinclair committed various administrative infractions. Specifically, the Tribunal found that Respondents exceeded their authority in questioning and frisking the other occupants of Mr. Archibald's car because they did not have the requisite level of suspicion to reasonably believe that they were involved in criminal activity. It is also notable that Respondents stopped Mr. Archibald's vehicle for a minor VTL infraction when their enforcement focus, as NST officers, was on more serious offenses.

The proven misconduct in this case can be probative circumstantial evidence used to establish bias-based policing or racial profiling. To prove such a claim, however, the circumstantial evidence must be such as to support the conclusion that the inference drawn "is the only one that is fair and reasonable." Disciplinary Case No. 2015-13328 (June 8, 2017), quoting *Health & Hosps. Corp. (Woodhull Med. & Mental Health Ctr.) v. Amoros*, OATH Index Nos. 469-70/02, p. 23 (Nov. 6, 2002), citing *Department of Transp. v. Mascia*, OATH Index No. 403/85, p. 12 (May 30, 1986). Here, there are other significant probative factors which weigh against drawing an inference that Respondents took police action based upon actual or perceived race.

For example, evidence that an officer knew an individual's race before stopping a vehicle can support an inference that the individual's race may have played a role in the officer's decision to take such action. See *Ballew v. Pasadena*, 642 F.Supp.3d 1146, 1164-65 (C.D. Cal., Nov. 23, 2022); *Commonwealth v. Long*, 152 N.E.3d 733, 739-40 (Mass. 2020); *Marshall v. Columbia Lea Reg'l Hosp.*, 345 F.3d 1157, 1169 (10th Cir. 2003). The evidence in this case, however, is insufficient to support the conclusion that Respondents McCrain and Sinclair knew

the race of the individuals in the car prior to the December 20th stop. According to their testimony, Respondents could not determine the race of the vehicle occupants before the stop; they could only make out the presence of an air freshener hanging from the rearview mirror and the silhouettes of the occupants. At trial, there were several facts supporting Respondents' version of events. Specifically, it was approximately 2100 hours and dark outside, the vehicle windows were tinted and Respondents were driving behind Mr. Archibald's car when they initiated the stop.² Additionally, CCRB's Exhibit 2 shows that as Respondents approached the vehicle, and although the streetlights were on, their flashlights were on, presumably to illuminate their path and enhance their ability to see. Accordingly, I find that the evidence is insufficient to support the conclusion that Respondents knew the race of the occupants before stopping the vehicle.

CCRB also offered statistical evidence in support of its argument that Respondents McCrain and Sinclair engaged in bias-based policing. Courts have widely recognized that data showing a pattern of racial disparities in a police officer's enforcement actions is probative circumstantial evidence in a racial profiling case against that officer. *See, e.g., U.S. v. Avery*, 137 F.3d 343, 355 (6th Cir. 1997); *Marshall*, 345 F.3d at 1168; *Anderson v. Cornejo*, 284 F.Supp.2d 1008, 1050 (N.D. Ill. 2003); *United States v. Hare*, 308 F.Supp.2d 955, 992 (D. Neb. 2004); *Johnson v. Holmes*, 782 Fed. Appx. 269, 281-82 (4th Cir. 2019); *Long*, 152 N.E.3d at 739-40; *Ballew*, 642 F.Supp.3d at 1165-67. Here, CCRB offered data on the race of drivers stopped by Respondents over a one-year period, and the testimony of Dr. Alix Winter, Chief Data Scientist

² Mr. Archibald testified that his car windows were tinted "thirty-five percent" which he believed to be "legal" tints. (Tr. 155-56) However, Respondents did not stop the car for this reason and no test was administered to assess the degree of tint and whether it was within the legal limit.

for the Racial Profiling and Bias-Based Policing Unit, to aid in the Tribunal's understanding of this data.³

Dr. Winter testified that in her capacity as a Chief Data Scientist at CCRB, she meets with the unit's investigators and attorneys to discuss complaints in which they have identified law enforcement actions that are potentially racially biased. She then requests the pertinent datasets from the NYPD and analyzes them to assess whether a subject officer's relevant enforcement activity demonstrates a pattern of racial disparities.⁴ To date, Dr. Winter has analyzed fifty cases alleging racial bias. In more than 50% of the cases she analyzed, the data indicated that an officer did not have a pattern of racially disproportionate enforcement activity. (Tr. 38-40)

Dr. Winter analyzed the vehicle stop report data provided by the NYPD for Respondents from January 1, 2022 until the date of this incident. Dr. Winter then compared the racial composition of Respondents' vehicle stops to United States Census data reflecting the racial

³ This tribunal certified Dr. Winter as an expert. Dr. Winter testified about her educational background and professional experience in the field of quantitative social science research. She indicated that her expertise is in racial and socioeconomic inequality in the United States. Dr. Winter has published academic papers that use quantitative social science methods to examine racial and socioeconomic inequality, particularly in relation to health and in relation to the criminal legal system. In addition to her publications, Dr. Winter presented her work in a variety of settings including universities and at the Centers for Disease Control and Prevention. Moreover, she has taught classes on quantitative methods on both the introductory and advanced graduate level. (Tr. 33-36) The decision to permit expert testimony on a given subject or by a particular witness is a question for the court. "Generally speaking, a predicate for the admission of expert testimony is that its subject matter involve information or questions beyond the ordinary knowledge and experience of the trier of the facts. The expert should possess the requisite skill, training, education, knowledge or experience from which it can be assumed that the information imparted or the opinion rendered is reliable." See *Matott v. Ward*, 48 N.Y.2d 455, 459 (1979), *People v. Ingram*, 2 A.D.3d 211 (1st Dept. 2003) Although Dr. Winter had not been previously qualified as an expert, she testified that she was confident in her ability to provide accurate and reliable opinions on the data provided by the Department based upon her education and experience. Respondents' attorney was given the opportunity to *voir dire* Dr. Winter and objected to her being qualified an expert. Over counsel's objection, this Tribunal qualified Dr. Winter as an expert in the field of data analysis.

⁴ In June 2023, CCRB and NYPD reached a Data Sharing Agreement which provides that the NYPD will share historical data – including anonymized enforcement data, specifically for the type of enforcement at issue, for the subject officer(s) and other officers from the subject officer's command during the 12-month period before an incident – with the CCRB for investigations that include allegation(s) of bias-based policing or racial profiling and have reached the stage of investigation in which the subject officer(s) have been identified.

composition of the residential population of the 113 Precinct and a one-mile radius around it (hereinafter “113 Precinct”). Because the occupants of the vehicle stopped by Respondents in this case were Black, she compared their vehicle stops involving Black drivers to the residential population that self-identified as Black. The data used by Dr. Winter is collected every ten years by the United States Census Bureau and is gathered annually by the American Community Survey. The Census data indicated that the residential population of the 113 Precinct is 77% Black. (Tr. 54-55)

Dr. Winter’s methodology analyzed the vehicle report data and compared each Respondent’s vehicle stops involving Black drivers to the residential population of the 113 Precinct, the vehicle stops involving Black drivers made by the other members of service in the 113 Precinct, and similarly situated vehicle stops⁵ made by members of service in the 113 Precinct. Dr. Winter also analyzed the outcomes of Respondents’ vehicle stops by race, including summonses issued, arrests made, and vehicles searched and seized, and compared these outcomes to the stops of similarly situated vehicle stops conducted in the targeted area. Dr. Winter also excluded vehicle stops addressing tinted windows to eliminate instances where officers were less likely to have ascertained the race of the driver before making the stop. (Tr. 37-38, 58-59, 93, 97, 135-36)

Dr. Winter elaborated on the results of her data analysis, including which differences between Respondents’ vehicle stops and the vehicle stops by the rest of the command she believed were “statistically significant.” Dr. Winter’s analysis of this data revealed that

⁵ Dr. Winter defined “similarly situated vehicle stops” as those that were conducted by officers assigned to the same command as the subject officers and occurred within the same time of day (using 2-hour time blocks), day of the week, month, and police sector combinations that match such combinations among the subject officers’ vehicle stops. (Tr. 57)

Respondents McCrain and Sinclair stopped a higher percentage of Black drivers as compared to three categories: 1) the residential population, 2) the drivers stopped by the other members of service in their command, and 3) the drivers stopped in similarly situated vehicle stops. Whereas 77% of the residential population of the 113 Precinct is Black, 96% and 88% of drivers stopped by Respondent McCrain and Respondent Sinclair, respectively, were Black. According to Dr. Winter, Respondent Sinclair's and Respondent McCrain's stops of Black drivers are especially significant given that only 68% of vehicle stops made by the rest of the members of service in their command involved Black drivers. Most notably, while 96% of the drivers stopped by Respondent McCrain were Black, only 79% of drivers in similarly situated stops made by other officers from the 113 Precinct involved Black drivers. While 88% of drivers stopped by PO Sinclair were Black, 74% of similarly situated stops made by other 113 Precinct officers involved Black drivers. Dr. Winter assessed these disparities to be statistically significant based on prevailing social science research standards. (Tr. 55-56, 60-65)

The data presented to this tribunal does document comparative racial disparities between the drivers stopped by Respondents and those stopped by other officers in their precinct. While at first blush these disparities raise serious questions, the legal inquiry cannot stop there. The primary issue before this tribunal is whether the data provided by CCRB has proven that the cause of the noted disparities is racial bias. As previously mentioned, Dr. Winter used Census data to develop an "external benchmark" against which to measure Respondents' vehicle stop data. While there are an array of accepted benchmarking methods that have been used across the country, some are more focused in their ability to draw a causal inference about the extent to

which race was a relevant factor in police decision-making.⁶ This tribunal is cognizant that developing appropriate benchmarks is a complicated task and that there is no single accepted standard that can be applied to data to definitively ascertain whether police are acting with racial bias. However, after assessing Dr. Winter's data analysis and testimony, this tribunal is not persuaded that there is sufficient evidence to draw a causal inference about the effect of race on Respondent McCrain and Sinclair's law enforcement actions on the night in question.

Although Respondents chose not to call an expert or present any statistical evidence on behalf of the defense, this Tribunal did find a significant gap in Dr. Winter's statistical analysis. Dr. Winter used Census data to determine the racial composition of those residing within the 113 Precinct. This Census data is valuable because it is easily accessible and can be broken down by small geographic units within a jurisdiction. However, the major drawback of this data is that it does not necessarily represent the racial background of drivers who are at risk of law enforcement interventions on the roads. In short, the demographic profile of residents produced by Census data is not likely to be an accurate reflection of drivers who may be on the roads and stopped by police.

Some studies, including those relied upon by CCRB, have suggested adjusting the Census data by incorporating different variables to ensure a more refined analysis. These studies recommend various adjustments including distilling the data by removing minor children and including only the population of driving age, or adjusting the Census data for those who own a vehicle using the National Personal Transportation Survey.⁷ Other studies also recommend using

⁶ See Greg Ridgeway and John MacDonald, *Methods for Assessing Racially Biased Policing* (RAND Corp. 2011), available at <https://www.rand.org/pubs/reprints/RP1427.html>

⁷ Lorie A. Fridell, *By the Numbers: A Guide for Analyzing Race Data from Vehicle Stops*, Police Executive Research Forum (2004)

the race distribution of licensed drivers rather than residential population to estimate the race distribution of drivers at risk of being stopped by the police.⁸ Census benchmarking with adjustments is a stronger method than using unadjusted Census data for assessing the nature and extent of the racial disparities presented by Dr. Winter.⁹

I find that the overly broad Census data used by Dr. Winter is not a sufficiently reliable benchmark for the demographics of motorists on the roads patrolled by Respondents. Imprecise approximations of the population at risk for police contact can lead to exaggerated estimates of racial bias. Additionally, and perhaps most important for this tribunal's assessment, is that the approach used did not provide an evidentiary basis for finding a causal inference about the effect of race on police behavior.

In addition to the external benchmarking described above, Dr. Winter also compared Respondents' vehicle stops to "similarly situated" vehicle stops made by officers in the 113 Precinct. This method has been referred to by some studies as "internal benchmarking." As noted in relevant studies, "the strength of this method is directly linked to the quality of the match between the officers or group of officers being compared. That is, the researcher wants to maximize the similarity among the officers being compared or among the groups being

⁸ Zingraff, M. T., Mason, M., Smith, W., Tomaskovic-Devey, D., Warrent, P., McMurray, H. L., and Fenlon, R. C., *Evaluating North Carolina State Highway Patrol Data: Citation, Warnings, and Searches in 1998*, report submitted to North Carolina Department of Crime Control and Public Safety and North Carolina State Highway Patrol (2000).

⁹ In their post-trial memorandum of law, CCRB relied on the finding in *Commonwealth v. Long*, 152 N.E.3d 725 (2020), where the Massachusetts Supreme Judicial Court held that a trial judge erred in discounting statistical expert analysis comparing individual officers' vehicle stop data to the population of drivers in the areas patrolled by those officers, as measured by the Census data. However, the court in *Long* also found that "the defendant's expert statistician took pains to account in sophisticated ways for the possible presence of nonresident drivers." *Id.* at 746. This targeted benchmarking data was found to be sufficiently reliable to support a claim of selective enforcement and racial discrimination in making traffic stops.

compared.”¹⁰ The goal is to compare officers on the same tour of duty, in the same geographic area and *with the same assignment* because they would presumably be exposed to a similar population of drivers.

Dr. Winter defined “similarly situated” stops as those that were conducted by officers assigned to the same command as the subject officers and occurred within the same time of day (using 2-hour time blocks), day of the week, month, and police sector combinations that match such combinations among the subject officers’ vehicle stops. Dr. Winter testified that the comparison group consisted of 186 uniformed members of service assigned to the 113 Precinct who completed vehicle reports during the relevant period in question. When using this comparison group, however, Dr. Winter did not dichotomize the rank or assignments of those 186 officers. She further acknowledged that such “assignment data” would have rendered the “similarly situated” comparison to be “more narrowly focused.” (Tr. 109, 127-28)

In other words, the report on similarly situated stop reports provided by CCRB included vehicle stops made by officers with different assignments than Respondents. In order for the results of this methodology to be sufficiently reliable, the officers in the similarly situated group should have been matched by assignment. It is reasonable to expect officers with different duties and responsibilities to have different priorities. For instance, officers assigned to enforce traffic laws are likely to stop more drivers than NST officers or general patrol. Thus, combining vehicle stops by officers with different assignments is likely to yield distorted data.¹¹

¹⁰ Fridell, *supra* note 8 at 143.

¹¹ Some research suggests that officers with a particularly low number of documented stops, even if they otherwise fit into a selected comparison group, should be excluded because analyses based on small numbers are unreliable. Additionally, Dr. Winter testified that less than 20 reports for an officer would be insufficient to make a “meaningful” comparison. It should be noted that Respondent McCrain only made 24 documented vehicle stops during the relevant time period. Some studies suggest that the internal benchmark approach should not include

While benchmarking enables analysts to identify “outliers”-- officers who stop racial minorities at higher rates than their counterparts -- the degree of confidence in identifying bias-based policing is dependent upon the strength of the match. In sum, definitive conclusions about bias-based policing cannot be drawn from the benchmarking method used here because the racial/ethnic profile of the drivers to which an officer or group of officers is exposed is not similar to the racial/ethnic profile of the drivers to which the matched officers or matched group of officers are exposed. Although the benchmarking method used in this case highlighted certain racial disparities, it was not sufficiently probative to base a finding that the identified disparity was caused by racial bias.

CCRB has the burden of proving by a preponderance of the credible evidence that Respondents took law enforcement action based on the actual or perceived race of the occupants of the vehicle. Based upon the record in this case, I find that CCRB fell short of that burden. Accordingly, Respondent McCrain is found not guilty of Specification 6 and Respondent Sinclair is found not guilty of Specification 7.

b. Respondent Lombardi

Dr. Winter testified that she analyzed Respondent Lombardi’s vehicle stops using the methodology described above. However, Respondent Lombardi arrived on scene after the stop of the vehicle was conducted by other officers and played no role in the decision to stop the vehicle. In this Tribunal’s opinion, Dr. Winter’s statistical analysis of Respondent Lombardi’s vehicle stops is not probative to the limited issues concerning the law enforcement actions he took on the date in question. Accordingly, I find Respondent Lombardi not guilty of Specification 7.

officers with less than 50 stops because “then chance differences from their benchmark are likely and the comparisons are underpowered.” (See Rand, *supra* note 8 at 18)

PENALTY

In order to determine appropriate penalties, this Tribunal, guided by the Department's Disciplinary System Penalty Guidelines ("Discipline Matrix"), considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondents' employment histories also were examined. *See* 38 RCNY § 15-07. Information from their personnel records that was considered in making these penalty recommendations is contained in attached memoranda.

Respondent Lombardi

Respondent Lombardi was appointed on July 1, 2019. He has had no formal disciplinary history in his almost six years with the Department and has been recognized with several medals during that time period. Respondent Lombardi has been found guilty of questioning, frisking and searching J.B. [REDACTED] without sufficient legal authority. He has also been found guilty of failing to provide a business card at the end of his interaction with J.B. [REDACTED]

The record establishes that Respondent Lombardi arrived on scene to aid fellow officers engaged in a vehicle stop and that his interaction with the backseat passenger, J.B. [REDACTED] was limited. Respondent Lombardi's initial frisk of J.B.'s [REDACTED] bag was appropriate under the circumstances; however, his subsequent search of the bag and then further questioning, frisk and search of J.B. [REDACTED] himself was unjustified. Moreover, Respondent Lombardi's failure to provide a business card is a Patrol Guide violation that warrants a separate penalty.

The presumptive penalty for improper question, frisk and search, is three penalty days, respectively. This Tribunal finds that, under the circumstances presented here, concurrent penalties for these specific infractions are appropriate. Therefore, I recommend a forfeiture of three vacation days. The presumptive penalty for failure to provide a business card, which is also

three days, is warranted. Given the separate and distinct nature of Respondent's violations, the penalties shall run consecutively. Accordingly, I recommend that Respondent Lombardi forfeit a total of six vacation days.

Respondents McCrain and Sinclair

Respondent McCrain, who was appointed to the Department on October 24, 2018, and Respondent Sinclair, who was appointed on July 2, 2018, have no prior formal disciplinary adjudications. Respondent Sinclair has been found guilty of questioning and frisking two different occupants of Mr. Archibald's vehicle without sufficient legal authority. Respondent McCrain has been found guilty of improperly questioning Mr. Archibald as well as questioning and frisking an unidentified occupant. In addition, both Respondents have been found guilty of an improper search and seizure of Mr. Archibald's vehicle.

As discussed above, Mr. Archibald was detained and ultimately arrested for driving with a suspended license after being stopped for a VTL infraction. This Tribunal found, however, that Respondent McCrain's questions regarding the contents of Mr. Archibald's vehicle surpassed the reasonable bounds of this investigation. Additionally, because the other occupants in his car were not suspected of committing a crime, Respondents lacked the requisite founded suspicion that criminal activity was afoot to question these individuals. Respondents also exceeded their authority in frisking them even if they believed they had "consent" to do so. This tribunal further notes that a number of unexplained procedural irregularities flowed from this stop which must be addressed.

With respect to the question and frisk specifications, the presumptive penalty for unauthorized questioning is three penalty days. Likewise, the presumptive penalty for an unauthorized frisk is three penalty days. Given the specific facts of this case, it is appropriate that

the penalties for these two infractions run concurrently. Inasmuch as each Respondent questioned and frisked separate individuals without sufficient legal authority, I recommend a penalty of three vacation days for each person impacted by this violation. Accordingly, Respondent McCrain and Respondent Sinclair will each forfeit a total of six vacation days for the misconduct set forth in these specifications.

Respondents McCrain and Sinclair also engaged in misconduct by seizing and searching Mr. Archibald's car. The presumptive penalty for the seizure of property (which this Tribunal interprets as including a vehicle) is three days; the presumptive penalty for the search of a vehicle is an additional three days. Given Respondents' failure to properly document these actions and provide an inventory of the vehicle's contents, I am recommending that these penalties run consecutively. Consequently, for the seizure and search of the vehicle, each Respondent will forfeit six vacation days.

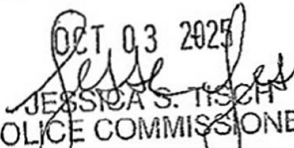
In sum, this Tribunal recommends that Respondent McCrain forfeit a total of twelve vacation days and that Respondent Sinclair also forfeit a total of twelve vacation days.

Respectfully submitted,



Vanessa Facio-Lince
Assistant Deputy Commissioner Trials

APPROVED

OCT 03 2025

JESSICA S. TISCH
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: SUMMARY OF EMPLOYMENT RECORD
POLICE OFFICER ANTHONY LOMBARDI
TAX REGISTRY NO. 967967
DISCIPLINARY CASE NO. 2024-30538

Respondent was appointed to the Department on July 1, 2019. On his three most recent annual performance evaluations, he was twice rated “Exceptional” for 2022 and 2023 and was rated “Exceeds Expectations” for 2021. He has been awarded 22 medals for Meritorious Police Duty and three medals for Excellent Police Duty.

Respondent has no formal disciplinary history.

For your consideration.

Vanessa Facio-Lince
Assistant Deputy Commissioner Trials



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials
To: Police Commissioner
Subject: SUMMARY OF EMPLOYMENT RECORD
POLICE OFFICER RYAN MCRAIN
TAX REGISTRY NO. 966701
DISCIPLINARY CASE NO. 2024-30539

Respondent was appointed to the Department on October 24, 2018. On his three most recent annual performance evaluations, he was rated “Exceptional” for 2022, 2023 and 2024. He has been awarded nine medals for Meritorious Police Duty, and eight medals for Excellent Police Duty.

Respondent has no formal disciplinary history.

For your consideration.

Vanessa Facio-Lince
Assistant Deputy Commissioner Trials



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials
To: Police Commissioner
Subject: SUMMARY OF EMPLOYMENT RECORD
POLICE OFFICER THOMAS SINCLAIR
TAX REGISTRY NO. 966341
DISCIPLINARY CASE NO. 2024-30540

Respondent was appointed to the Department on July 2, 2018. On his three most recent annual performance evaluations, he was twice rated “Exceptional” for 2022 and 2023 and was rated “Exceeds Expectations” for 2021. He has been awarded ten medals for Meritorious Police Duty, and seven medals for Excellent Police Duty.

Respondent has no formal disciplinary history.

For your consideration.

Vanessa Facio-Lince
Assistant Deputy Commissioner Trials